

24NNCV05594 24NNCV05594

County: los-angeles

Division: Civil Law and Motion

Department: X

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Case Number: 24NNCV05594 Hearing Date: September 8, 2026 Dept: X

#15 - VARUZHAN SHAGINYAN, et al. vs IN-N-OUT BURGERS

The motion for summary judgment is continued to September 11, 2026 at 8:30 a.m. in Department X.

Plaintiffs'

opposition memorandum states that a response to Defendant's separate statement,

with a statement of additional material facts, were filed concurrently. No such filing appears on the Court's docket.

Defendant's reply nevertheless describes

Plaintiffs' purported responses, including their admissions of 11 proposed

facts and disputes concerning UMF Nos. 5, 7, and 12.

An opposing party

must both serve and file a responsive separate statement identifying each

disputed fact and the supporting evidence. Failure to do so may, in the Court's

discretion, justify granting the motion. (Code Civ. Proc., § 437c(b)(3).) The consequence is discretionary, not

automatic.

Defendant's reply is

not a substitute for Plaintiffs' required filing because it does not place

Plaintiffs' complete responses and evidentiary citations before the Court. Nevertheless, the Court declines to grant

summary judgment solely for this procedural omission, particularly where Defendant understood and addressed the

asserted disputes.

As the Court cannot rely on Plaintiff's unfiled separate statement, by 4:00 p.m. today, Plaintiffs shall file the same responsive separate statement previously served on Defendant, without

alteration.

Court is to give notice.